

STATE OF NEW YORK

509--B

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. PAULIN, R. CARROLL, HEVESI, STECK, McDONALD, KAY, WIEDER, YEGER, EICHENSTEIN, BERGER, LEVENBERG, OTIS, ROZIC, ROSENTHAL, LAVINE, LUNSFORD, STERN, JENSEN, DINOWITZ, BURROUGHS, SCHIAVONI -- read once and referred to the Committee on Health -- recommitted to the Committee on Health in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law and the education law, in relation to authorizing certain camp employees to administer medications and treatment to children under certain circumstances

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 1394 of the public health law is amended by adding
2 a new subdivision 10 to read as follows:

3 10. Each children's overnight, summer day, or traveling summer day
4 camp, may permit employees of such camp who are eighteen years of age or
5 older to administer, with specific authorization and consent from a
6 child's parent or guardian, over-the-counter medications pursuant to a
7 patient-specific order issued by the camp health director or a physi-
8 cian, nurse practitioner, or physician assistant employed or contracted
9 with the camp to provide health services or the child's healthcare
10 professional, within their lawful scope of practice, including but not
11 limited to for the purposes of pain relief or the treatment of anaphy-
12 laxis and motion sickness or prescription medications for the treatment
13 of emergency conditions including but not limited to asthma, anaphylax-
14 is, and oral or nasal spray seizure medications. Such medications shall
15 be approved by the commissioner and administered pursuant to section
16 sixty-nine hundred eight of the education law and in accordance with the

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 rules and regulations promulgated by the commissioner, in consultation
2 with the commissioner of education.

3 § 2. Paragraph a of subdivision 1 of section 6908 of the education law
4 is amended by adding a new subparagraph (vi) to read as follows:

5 (vi) the administration of medications or treatment by employees of a
6 children's overnight camp, summer day camp and traveling summer day camp
7 where such employees are eighteen years of age or older and have been
8 given specific authorization by the camp's health director, including
9 via audio or video communications, to administer such medications or
10 treatments to a specific child, are acting under the direction and
11 authority of a parent of a child, legal guardian, legal custodian, or an
12 adult in whose care a child has been entrusted and who have been author-
13 ized by the parent or guardian to consent to health care for the child
14 and in compliance with regulations promulgated by the department of
15 health pertaining to the administration of medications and treatment;

16 § 3. This act shall take effect on the one hundred eightieth day after
17 it shall have become a law.